

at the time of entrustment of the goods to the railway administration for carriage by railways;

provided that the railway administration shall be responsible for any such damage, deterioration, leakage or wastage if negligence or misconduct on the part of the railway administration or of any of its servants is proved.

Comments

Section 98 provided for the responsibility of railways in cases of consignment which are in defective condition or are defectively packed.

Proviso. – In *Abdul Jabar Butt v. Sate of Jammu and Kashmir*, it was held that a proviso must be considered with relation to the principle matter to which it stands as a proviso.

99. Responsibility of a railway administration after termination of transit. –

1. A railway administration shall be responsible as a bailee under secs. 151, 152, and 161 of the Indian Contract Act, 1872 (9 if 1872), for the loss, destruction, damage, deterioration or non-delivery of any consignment up to a period of seven days after the termination of transit;

Provided that where the consignment is at owner's risk rate, the railway administration shall not be responsible as a bailee for such loss, destruction, damage, deterioration or non-delivery except on proof of negligence or misconduct on the part of the railway administration or of any of its servants .

2) The railway administration shall not be responsible ;in any case for the loss, destruction, damage deterioration or non-delivery of any consignment arising after the expiry of a period of seven days after the termination of transit.

3) Notwithstanding anything contained in the foregoing provisions of this section, a railway administration shall not be responsible for the loss, destruction, damage, deterioration or non-delivery of perishable goods, animals explosives and such dangerous or other goods as may be prescribed, after the termination of transit.

4) Nothing in the foregoing provisions of this section shall affect the liability of any person to pay any demurrage or wharfage, as the case may be, for so long as the consignment is not unloaded from the railway wagons or removed from the railway premises.

100. Responsibility as carrier or luggage.

A railway administration shall not be responsible for the loss, destruction, damage, deterioration or non-delivery of any luggage unless a railway servant has booked the luggage and given a receipt therefore and in the case of luggage which is carried by the passenger in his charge, unless it is also proved that the loss, destruction, damage or deterioration was due to the negligence or misconduct on its part or on the part of any of its servants.

Comments

Section 100 deals with the responsibility of the railway administration for any loss, destruction, etc. of luggage.

101. Responsibility as a carrier of animals. – A railway administration shall not be responsible for any loss or destruction of or injuries to any animal carried by railway arising from fright or restiveness of the animal or from over – loading of wagons by the consignor.

Comment

Section 101 absolves the railway administration of its responsibility for any loss, destruction or injury to animal arising from fright or restiveness of the animal or from overloading of wagon by the consignor.

Comments

102. Exoneration from liability in certain cases. – Notwithstanding anything contained in the foregoing provisions of the chapter, a railway administration shall not be responsible for the loss, destruction, damage, deterioration or non-delivery of any consignment –

- (a) when such loss, destruction, damage, deterioration or non-delivery is due to the fact that a materially false description of the consignment is given in the statement delivered under section (1) of Sec. 66, or
- (b) Where a fraud has been practiced by the consignor or the consignee or the endorsee or by an agent of the consignor, consignee or the endorsee; or
- (c) Where it is proved by the railway administration to have been caused by, or to have arisen from –
 - i. improper loading or unloading by the consignor or the consignee or the endorsee or by an agent of the consignor, consignee or the endorsee;